

Court No. - 40

Case :- WRIT - C No. - 18965 of 2023

Petitioner :- Umang Agrawal

Respondent :- Managing Director Purvanchal Vidyut Vitran
Nigam Ltd. And 2 Others

Counsel for Petitioner :- Prateek Bansal, Anshul Bansal

Counsel for Respondent :- Sushil Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

Connect and list along with Writ C No. 18900 of 2023 on the date
fixed.

Order Date :- 7.7.2023

A.K.Srivastava

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Counsel for Respondent :- Sushil Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner and Sri Sushil Kumar Sharma, learned counsel for the respondents.
2. The present writ petition has been preferred assailing the impugned letter/order dated 03.02.2023 passed by respondent no.3 (Annexure No. 12 to the writ petition) and further commanding the respondents to reconnect the electricity supply of the petitioner.
3. Learned counsel for the petitioner submits that the petitioner has taken an electricity connection under Rate Schedule LMV-2 applicable for domestic use. On 04.05.2021 a spot inspection was carried out at the residence of the petitioner by the Sub Divisional Officer (Meter), Junior Engineer (Meter), Sub-Divisional Officer (Distribution), Junior Engineer (Distribution) wherein it was found that the meter has been tampered. Consequently, the provisional assessment notice was issued to the petitioner on 06.07.2021 but till date without final assessment, the order impugned has been passed on 03.02.2023. In support of his submissions, learned counsel for the petitioner has placed reliance upon judgment and order of this Court in **Rituraj Vs. State of U.P. And 3 Others** (Writ C No. 35477 of 2016, dt. 14.12.2017) and submits that the entire action of the respondents is per se unsustainable in view of the Electricity Supply Code 2005.
4. Today, when the matter is taken up, learned counsel for the respondents has placed a detailed instructions dated 19.7.2023 sent by the Executive Engineer, Electricity Distribution Division-Second, Purvanchal Electricity Distribution Nigam Limited, Mirzapur, wherein it has been stated that in compliance of the aforesaid order, the final assessment has been withdrawn and the notice is issued to the petitioner on 19.07.2023 to submit his reply within 15 days. It is submitted that the cause of filing the writ petition no more survives and the writ petition is liable to be dismissed as infructuous. The same is taken on record.

5. Accordingly, the writ petition is dismissed as infructuous.

Order Date :- 24.7.2023

RKP